

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANTONIA ANN PENA,

Petitioner

VS.

JORGE LUIS PENA, SR.,

Respondent

) Case Number: FDI-86-855206

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: VISITING JUDGE JANET FRANGIE

REQUEST FOR ORDER RE: PROPERTY CONTROL, POSTHUMOUS ENTRY OF PRE-
APPROVED QDRO

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Antonia Ann Martinez (hereafter “Martinez”) and Jorge Luis Peña, Sr. (hereafter “Peña”).
- 2) On 5/13/88, the Court entered Dissolution Judgment incorporating a Marital Settlement Agreement, which provides for, in pertinent part, Martinez to receive one half of Peña’s pension plan.
- 3) On 6/11/26, Martinez filed a Request for Order seeking to enforce the terms of the Dissolution Judgment dividing Martinez’s pension benefit. Martinez states Peña, who remarried, passed away on 1/15/25. Martinez attaches a letter from the pension plan administrator and a proposed QDRO to her Request for Order. Martinez asserts that the plan administrator has approved the QDRO and confirmed that her interest is not being paid to the surviving spouse.
- 4) There is no Proof of Service of the Request for Order on file.

B. Findings and Order

- 1) The Court recognizes that Martinez has a valid claim to the interest in Peña's pension benefits awarded to her in the Dissolution Judgment entered 5/13/88. (Cal. Prac. Guide: Family Law (The Rutter Group 2024) ¶ 8:1189.1.)
- 2) However, the Court also recognizes that it is undisputed that Peña remarried. Thus, surviving spouse benefits may be payable to Peña's new spouse, who was not noticed of this hearing.
- 3) The Court therefore finds good cause to **CONTINUE the hearing to 8/27/26 at 9 AM in Dept. 403** for Martinez to notice Peña's surviving spouse.
- 4) At least 16 Court days prior to the next hearing date, Martinez shall serve on Peña's surviving spouse the (a) 6/11/26 Request for Order, (b) Continuance Order contained herein, (c) a Blank Responsive Declaration; and (d) Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure.
- 5) The Court will prepare the Findings and Order After Hearing.